POST

Reforming the Clean Air Act: A New Approach to Addressing Stationary Sources

Originally written: May 7, 2012 · Published here: May 12, 2026

How about working to build something new together? Here is an idea. If we succeeded in this endeavor we could greatly reduce costs to industry and the public–and improve environmental quality. There is a win-win future out there if we have the courage to seek it.

Imagine if a stationary source could be surrounded by some type of remote sensing or monitoring field that would measure air coming into and out of a facility. Imagine what this could mean? You would get real-world results (rather than relying on AP-42 factors and praying they are right in the field). You would have much more simplicity, transparency, and accountability. There would be no need for about 75% of the Clean Air Act and its regulations. Those regulations could and would need to be removed as explained below. A facility could do whatever it wanted within its bubble. You would not need NSR, Title V, MACT, BACT, or almost any other acronym. A facility could put in a 1955 boiler if it wants with no need for a permit, modification, BACT assessment, or the like. The only thing a facility could not do is exceed the limits of its bubble without ramifications. Imagine the billions of dollars that could be saved and real-world emissions that could be reduced? It would be revolutionary–essentially like the computer-age of air quality management.

We are almost there—and some would argue we are already there. One of the keys to this future is that industry cannot be required to calculate emissions with this new "computer" and also continue to be required to calculate emissions using a slide-rule

and doing the calculations long-hand. We seem to have this tendency in environmental regulation to pile on requirements. We think that the more environmental regulations we add the better the environment will be. Not so. It's like a cup of black coffee. Just because we add more sugar doesn't mean that the coffee will keep tasting better. In fact at some point it will start tasting like crap. Remote sensing offers an opportunity to simplify. Remote sensing offers an opportunity to decrease both emissions as well as compliance costs. If what we end up with in the end though is only pushing more requirements on industry without removing unnecessary and duplicative requirements we will not succeed in accomplishing our ends. It is silly and a waste of business and government resources to do calculations both with a computer, a calculator, a slide-rule, and long-hand. Plus these results will differ—leading to conflicting standards. Also, as we all know, companies can move more operations overseas where there are less controls and it's cheaper to operate. More product might be produced overseas and arrive to the U.S. via ship. This would increase emissions. Moreover, some of the displaced emissions will reach us via the wind (e.g. long-range transport—it's happening). Finally, my brothers and sisters in Nigeria will be faced with breathing more pollution—and pollution for creating products intended for me. Why should I not care just as much about their children as I do my own?

Remote sensing offers a win-win opportunity—saving companies substantial amounts in compliance costs while improving environmental performance and keeping jobs here in America.

We must simplify our system. We have an opportunity to do so. With simplicity will come better transparency. With transparency will come better accountability. The more simple things are, the more everyone understands them. The more everyone understands them, the better they can comply with them. It's that simple.

——*“Progress lies not in enhancing what is, but in advancing toward what will be.”*—-Kahlil Gibran

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Original source: https://sipreform.wordpress.com/2012/05/07/reforming-the-clean-air-act-a-new-approach-to-addressing-stationary-sources/ (May 6, 2012)

Markdown source: https://jedanderson.org/posts/reforming-the-clean-air-act-a-new-approach-to-addressing-stationary-sources.md (https://jedanderson.org/posts/reforming-the-clean-air-act-a-new-approach-to-addressing-stationary-sources.md)

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